

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1641

By: Daniels of the Senate

and

Strom of the House

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10 An Act relating to business entities; amending 18
11 O.S. 2021, Sections 2005, as amended by Section 3,
12 Chapter 121, O.S.L. 2024, 2043, and 2055.2, as
13 amended by Section 21, Chapter 121, O.S.L. 2024 (18
14 O.S. Supp. 2025, Sections 2005 and 2055.2) which
15 relate to the Oklahoma Limited Liability Company Act;
16 requiring submission of electronic mail address of
17 certain agents or entities to the Secretary of State;
18 amending 54 O.S. 2021, Sections 500-201A, 500-210A,
19 and 500-902A, which relate to the Uniform Limited
20 Partnership Act of 2010; requiring submission of
21 electronic mail address of certain agents or entities
22 to the Secretary of State; updating statutory
23 references; updating statutory language; and
24 providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 18 O.S. 2021, Section 2005, as
amended by Section 3, Chapter 121, O.S.L. 2024 (18 O.S. Supp. 2025,
Section 2005), is amended to read as follows:

Section 2005. A. The articles of organization shall set forth:

1 1. The name of the limited liability company;

2 2. The term of the existence of the limited liability company
3 which may be perpetual; and

4 3. The street address of its principal place of business,
5 wherever located, and the name, electronic mail address, and street
6 address of its registered agent which shall be identical to its
7 registered office in this state.

8 B. If the limited liability company is to establish two or more
9 series of members, managers or membership interests having separate
10 rights, powers or duties as provided under Section 2054.4 of this
11 title or Section ~~14~~ 2054.5 of this ~~act~~ title and the debts,
12 liabilities and obligations incurred, contracted for or otherwise
13 existing with respect to a particular series are to be enforceable
14 against the assets of the series only, the articles of organization
15 shall set forth a notice of the limitation on liabilities of the
16 series.

17 C. The articles of organization may set forth any other matters
18 the members determine to include. It is not necessary to set out in
19 the articles of organization any of the powers enumerated in Section
20 2000 et seq. of this title.

21 SECTION 2. AMENDATORY 18 O.S. 2021, Section 2043, is
22 amended to read as follows:

23 Section 2043. Before transacting business in this state, a
24 foreign limited liability company shall register with the Office of

1 the Secretary of State. In order to register, a foreign limited
2 liability company shall:

3 1. Pay to the Secretary of State a registration fee required by
4 Section ~~56~~ 2055 of this ~~act~~ title;

5 2. Provide the Secretary of State with an original certificate
6 from the certifying officer of the jurisdiction of the foreign
7 limited liability company's organization attesting to the foreign
8 limited liability company's organization under the laws of such
9 jurisdiction; and

10 3. Submit to the Office of the Secretary of State an
11 application in duplicate for registration as a foreign limited
12 liability company, signed by a manager, member, or other person, and
13 setting forth:

14 a. the name of the foreign limited liability company and,
15 if different, the name under which it proposes to
16 transact business in this state,

17 b. the state or other jurisdiction and date of its
18 organization,

19 c. the name, electronic mail address, and street address
20 of a registered agent in this state which agent shall
21 be an individual resident of this state, or a domestic
22 or qualified foreign corporation, limited liability
23 company, or limited partnership. Each registered
24 agent shall maintain a business office identical with

1 the registered office which is open during regular
2 business hours to accept service of process and
3 otherwise perform the functions of a registered agent.
4 If an additional registered agent is designated,
5 service of process shall be on that agent and not on
6 the Secretary of State,

- 7 d. a statement that the Office of the Secretary of State
8 is appointed the agent of the foreign limited
9 liability company for service of process if no agent
10 has been appointed under subparagraph c of this
11 paragraph, or if appointed, the agent's authority has
12 been revoked or if the agent cannot be found or served
13 with the exercise of reasonable diligence,
- 14 e. the address of the office required to be maintained in
15 the state of its organization by the laws of that
16 state or, if not so required, of the principal office
17 of the foreign limited liability company, and
- 18 f. such additional information as may be necessary or
19 appropriate in order to enable the Office of the
20 Secretary of State to determine whether such limited
21 liability company is entitled to transact business in
22 this state.
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1 SECTION 3. AMENDATORY 18 O.S. 2021, Section 2055.2, as
2 amended by Section 21, Chapter 121, O.S.L. 2024 (18 O.S. Supp. 2025,
3 Section 2055.2), is amended to read as follows:

4 Section 2055.2.

5 ANNUAL CERTIFICATE FOR DOMESTIC LIMITED LIABILITY COMPANY AND
6 FOREIGN LIMITED LIABILITY COMPANY

7 A. Every domestic limited liability company and every foreign
8 limited liability company registered to do business in this state
9 shall file a certificate each year in the Office of the Secretary of
10 State, which confirms it is an active business and includes its
11 principal place of business address and electronic mail address, and
12 shall pay an annual certificate fee of Twenty-five Dollars (\$25.00).

13 B. The annual certificate shall be due on the anniversary date
14 of filing the articles of organization, articles of registered
15 series, or registration, ~~as the case may be,~~ until cancellation of
16 the articles of organization or articles of registered series or
17 withdrawal of the registration.

18 C. The Secretary of State shall, at least sixty (60) days
19 before the anniversary date of each year, cause a notice of the
20 annual certificate to be sent to each domestic limited liability
21 company and registered series and each foreign limited liability
22 company and registered series required to comply with the provisions
23 of this section to its last known electronic mail address of record
24 with the Secretary of State.

1 D. A domestic limited liability company or registered series or
2 foreign limited liability company or registered series that fails to
3 file the annual certificate and pay the annual certificate fee
4 within sixty (60) days after the date due shall cease to be in good
5 standing as a domestic limited liability company or registered
6 series or registered as a foreign limited liability company or
7 registered series in this state.

8 E. Except for accepting a resignation of a registered agent
9 when a successor registered agent is not being appointed or an
10 application for reinstatement, the Secretary of State shall not
11 accept for filing any certificate or articles, or issue any
12 certificate of good standing, in respect to any domestic limited
13 liability company or registered series that has ceased to be in good
14 standing or foreign limited liability company or registered series
15 that has ceased to be registered, unless or until the domestic
16 limited liability company or registered series has been reinstated
17 in good standing or the foreign limited liability company or
18 registered series has been reinstated as a foreign limited liability
19 company or registered series duly registered in this state.

20 F. A domestic limited liability company or registered series
21 that has ceased to be in good standing or a foreign limited
22 liability company or registered series that has ceased to be
23 registered in this state may not maintain any action, suit or
24 proceeding in any court of this state until the domestic limited

1 liability company or registered series has been reinstated in good
2 standing or the foreign limited liability company or registered
3 series has been reinstated as a foreign limited liability company or
4 registered series duly registered in this state. An action, suit or
5 proceeding may not be maintained in any court of this state by any
6 successor or assignee of the domestic limited liability company or
7 registered series or foreign limited liability company or registered
8 series on any right, claim or demand arising out of the transaction
9 of business by the domestic limited liability company or registered
10 series after it has ceased to be in good standing or a foreign
11 limited liability company or registered series that has ceased to be
12 registered in this state until the domestic limited liability
13 company or registered series or foreign limited liability company or
14 registered series, or any person that has acquired all or
15 substantially all of its assets, has caused the limited liability
16 company or registered series to be reinstated in good standing or as
17 a foreign limited liability company or registered series duly
18 registered in this state, as applicable.

19 SECTION 4. AMENDATORY 54 O.S. 2021, Section 500-201A, is
20 amended to read as follows:

21 Section 500-201A.

22 FORMATION OF LIMITED PARTNERSHIP; CERTIFICATE OF LIMITED
23 PARTNERSHIP.
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1 (a) In order for a limited partnership to be formed, a
2 certificate of limited partnership must be delivered to the
3 Secretary of State for filing. The certificate must state:

4 (1) the name of the limited partnership, which must comply with
5 Section ~~8~~ 500-108A of this ~~act~~ title;

6 (2) the electronic mail address and the street and mailing
7 address of the initial designated office and the name, electronic
8 mail address, and street and mailing address of the initial agent
9 for service of process;

10 (3) the name, electronic mail address, and the street and
11 mailing address of each general partner;

12 (4) whether the limited partnership is a limited liability
13 limited partnership;

14 (5) the term of its duration if the duration is not to be
15 perpetual; and

16 (6) any additional information required by ~~Article 11~~ Sections
17 500-1101A through 500-1113A of this ~~act~~ title.

18 (b) A certificate of limited partnership may also contain any
19 other matters but may not vary or otherwise affect the provisions
20 specified in subsection (b) of Section ~~10~~ 500-110A of this ~~act~~ title
21 in a manner inconsistent with that section.

22 (c) If there has been substantial compliance with subsection
23 (a) of this section, subject to subsection (c) of Section ~~24~~ 500-
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1 206A of this ~~act~~ title, a limited partnership is formed when the
2 Secretary of State files the certificate of limited partnership.

3 (d) Subject to subsection (b) of this section, if any provision
4 of a partnership agreement is inconsistent with the filed
5 certificate of limited partnership or with a filed statement of
6 dissociation, cessation, or change or filed articles of conversion
7 or merger:

8 (1) the partnership agreement prevails as to partners and
9 transferees; and

10 (2) the filed certificate of limited partnership, statement of
11 dissociation, cessation, or change or articles of conversion or
12 merger prevail as to persons, other than partners and transferees,
13 that reasonably rely on the filed record to their detriment.

14 SECTION 5. AMENDATORY 54 O.S. 2021, Section 500-210A, is
15 amended to read as follows:

16 Section 500-210A.

17 ANNUAL CERTIFICATE FOR SECRETARY OF STATE.

18 (a) A limited partnership or a foreign limited partnership
19 authorized to transact business in this state shall deliver to the
20 Secretary of State for filing an annual certificate that states:

21 (1) the name of the limited partnership or foreign limited
22 partnership;

23 (2) the street, mailing address and electronic mail address of
24 its designated office and the name, electronic mail address, and

1 street and mailing address of its agent for service of process in
2 this state; and

3 (3) in the case of a foreign limited partnership, the state or
4 other jurisdiction under whose law the foreign limited partnership
5 is formed and any fictitious name adopted under subsection (a) of
6 Section 500-905A of this title.

7 (b) Information in an annual certificate must be current as of
8 the date the annual certificate is delivered to the Secretary of
9 State for filing.

10 (c) The annual certificate is due on the anniversary date of
11 the filing of the certificate of limited partnership or certificate
12 of authority of a foreign limited partnership until cancellation of
13 the certificate of limited partnership or certificate of authority.

14 (d) The Secretary of State shall, at least sixty (60) days
15 before the anniversary date of each year, cause a notice of the
16 annual certificate to be sent to each domestic limited partnership
17 and each foreign limited partnership required to comply with the
18 provisions of this section to the last known electronic mail address
19 of record with the Secretary of State.

20 SECTION 6. AMENDATORY 54 O.S. 2021, Section 500-902A, is
21 amended to read as follows:

22 Section 500-902A.

23 APPLICATION FOR CERTIFICATE OF AUTHORITY.
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1 (a) A foreign limited partnership may apply for a certificate
2 of authority to transact business in this state by delivering an
3 application to the Secretary of State for filing. The application
4 must state:

5 (1) the name of the foreign limited partnership and, if the
6 name does not comply with Section ~~§~~ 500-108A of this ~~act~~ title, a
7 fictitious name adopted pursuant to subsection (a) of Section ~~79~~
8 500-905A of this ~~act~~. title;

9 (2) the name of the state or other jurisdiction under whose law
10 the foreign limited partnership is organized;

11 (3) the electronic mail address, and the street and mailing
12 address of the foreign limited partnership's principal office and,
13 if the laws of the jurisdiction under which the foreign limited
14 partnership is organized require the foreign limited partnership to
15 maintain an office in that jurisdiction, the electronic mail
16 address, and the street and mailing address of the required office;

17 (4) the name, electronic mail address, and street and mailing
18 address of the foreign limited partnership's initial agent for
19 service of process in this state;

20 (5) a statement that the Secretary of State is appointed the
21 agent of the foreign limited partnership for service of process if
22 no agent has been appointed pursuant to paragraph (4) of this
23 subsection or, if appointed, the agent's authority has been revoked
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1 or if the agent cannot be found or served with the exercise of
2 reasonable diligence;

3 (6) the name, electronic mail address, and street and mailing
4 address of each of the foreign limited partnership's general
5 partners; and

6 (7) whether the foreign limited partnership is a foreign
7 limited liability limited partnership.

8 (b) A foreign limited partnership shall deliver with the
9 completed application a certificate of good standing or existence or
10 a record of similar import signed by the Secretary of State or other
11 official having custody of the foreign limited partnership's
12 publicly filed records in the state or other jurisdiction under
13 whose law the foreign limited partnership is organized.

14 SECTION 7. This act shall become effective November 1, 2026.

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16 COMMITTEE REPORT BY: COMMITTEE ON COMMERCE AND ECONOMIC DEVELOPMENT
17 OVERSIGHT, dated 04/20/2026 - DO PASS.
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